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# Documentation of Crime Scene

## An overview

The scene of occurrence is the place where a criminal offence is reported to have taken place. After a crime is reported to the Police, the investigation process is set into motion. Quite often, the success or failure of the entire criminal investigation will depend upon proper handling of the crime scene and processing of the evidence. The investigator who is a very important person at the scene must, therefore, possess the knowledge and skill to preserve and process the evidence available at the scene. He must learn to recognize, identify, preserve and collect items of physical evidence. He must also be fully conversant with the legal as well as the scientific requirement in the collection of evidence.

## Crime scene

A scene of occurrence of a crime is the place where a particular crime has been committed or where physical evidence of such crime is found when it is first brought to notice of the police. It is a starting point for the investigator, which provides him with the information on the victim and the suspect, and to reconstruct the crime.

The scene of occurrence cannot be limited to one place only. It may extend to one or more places. It may also not be limited to immediate surroundings, but may extend to a wider area depending upon the nature of the crime committed. In a compact scene of crime, such as burglary, the scene may be divided into five parts, namely:-

(a) Line of approach;
(b) Point of entry;
(c) Actual scene;
(d) Point of exit; and
(e) Line of retreat.

The scene of crime may be classified as outdoor or indoor scene. A crime committed on a road or a field is an outdoor crime. Whereas a crime committed in a house, a car, etc., is an indoor crime. There may be certain types or crime, which have no 'scene' at all. The crime of this nature are white collar crimes such as forgery, embezzlement etc.

The crime of indoor and outdoor nature like theft, house breaking, robbery, dacoity, homicide, rape, traffic accident, etc., have invariably physical evidence at their sense because of intense physical activities involved in their commission. Physical evidence found at the crime scene can be the key to the solution of a crime.

## People and Things

All criminal investigation is concerned either with people or with things. Only people commit crimes, but they invariably do so through the medium of things. It is these things that together constitute the broad field or physical evidence. Many investigations have failed in some degree to make the most efficient use of the physical evidence because of their neglect in looking for the physical evidence and placing reliance only on the people committing crimes. The investigator must, therefore, have a balanced approach to the investigation of crime. For that he must understand-

(a) What is physical evidence?
(b) How to collect and preserve it?
(c) How and from where to obtain the information it carries?
(d) How to interpret the information so obtained?

## Locard's Principle of Exchange

Dr. Edmond Locard, a foremost criminologist observed that criminals often posses some clues on or near their person or they leave such clues on or near the scene of crime. He thus propounded the theory of mutual exchange. Which states that 'when two objects come into contact,

there is always an exchange of material'. This is known as Locard's Principle of Exchange. It has great significance in crime scene inspection and reconstruction.

A person treading loose ground leaves his shoe-prints behind and carries away with him some of the soil on his shoes. A criminal may succeed in avoiding being seen or heard at the scene, but he cannot avoid coming in contact with his environment.

### Limitations

- The protection of the scene of crime is the most important pre-requisite for success in the application of science to investigation. As it will help to protect items of possible physical evidence. But this is often not possible because even before the investigating officer arrives at the scene, the inmates and curious onlookers assemble at the scene and often destroy every possible clue left by culprits
- The I.O. should, therefore, be trained to ensure that no one disturbs anything at the scene. Other limitations in the use of scientific evidence are that unless the real culprit is found soon it may be of little avail, and if a clue is not promptly noticed it may loose much of its value as evidence.
- Lastly, the forensic science laboratories responsible for processing of physical evidence are not adequate enough to cater to the needs of the investigating officer. The enormous delay in obtaining expert opinion has resulted in the lack of interest by the police in seeking expert opinion.
- As a result, even if the investigating officer finds several types of physical evidence, he may be less inclined to refer them to the laboratory, Recently Delhi High Court has laid down time limit, for obtaining expert opinion.

1. **Preservation of the Crime Scene**
   - Protection
   - Isolation by cordoning it off.
   - Nothing on the scene should be touched, changed or altered until the investigating officer takes its proper note.
   - Once any material object or dead body is moved from its place, it can never be restored to its original position.
   - Reconstruction of the crime and identification of the criminal by physical evidence will be very difficult

## Crime Scene Photography

- In crime investigation, the application of photography is by now well recognized.
- Photography is useful , as it helps in preserving what is perishable, and promotes objective presentation of facts
- It is capable of fixing such details which may be perhaps subsequent importance and which could have escaped the eye at the time of the inspection of the Locality.
- Generally speaking a photograph should be taken of all important scenes of crime, and specially of heinous offences a camera sees farther than the eye and however carefully the scene mind have been absorbed and particulars noted down many things escape our notice.
- The observation may have been done very carefully but there are many things which may escape notice and especially such details are liable to elude detection, which may be thought to be of not important in the investigation of the case.
- A photograph of the scene will depict everything.
- An investigator may change, and another may come in his stead.
- The photograph will help him to see things for himself.
- It will help bring before one's mind, the exact picture of the actual scene of crime.

### Scene of crime:

- The place where a crime is committed is scene of crime.
- A police officer investigating the case (crime) goes to a scene of crime and inspects or examines it to know, where the crime has been committed, how it has been committed and with what magnitude.

- Every item at the scene of crime has its importance and even an insignificant object may indicate something or some story to tell.
- The photographs of the scene to be taken by the police are for example: the path leading to the scene, the outer and interior view and other objects at the scene.
- The photographs show the location of the place, the surroundings, the entry, and other objects.
- The finger prints, foot prints, blood stains, the scratch marks on locks, destruction caused to various articles such as iron safes, steel cabinets and the implements or weapons left by accused etc., are to be photographed.
- To know the measurements of any object, a scale or measuring tape can be placed by the side of the object and photographed.
- During investigation photographs are useful to the investigating officer and subsequently during the trial to the court.
- However intelligent and clever the investigating officer may be, he cannot be expected to remember every details at the scene while describing it in the case diary.
- He is likely to pass over certain minor details which may afterwards assume importance.
- A scene of crime cannot be preserved till the investigation is completed let alone till the case is disposed of in courts
- If it is a house or vehicle or vessel, it has to be handed over to the owners as quickly as possible, since they would be deprived of its use.
- If it is an open place, the scene would be destroyed due to climate, or by animals, birds, etc.
- In case of foot-prints and finger prints, photography can be of immense value or help.
- Foot-prints and finger-prints are objects which are subject to speedy decay.
- Wherever these prints are of any help at all, photographic impression will be of very great assistance.
- In case of accidents involving vehicles, their position, with respect to each other, their numbers and surrounding objects are of paramount importance in fixing up the liability.
- Hence, photographs of accidents should be taken from different angles.
- The skid marks of tyres, if photographed, would reveal the attempts made by the driver in applying breaks and the speed at which the vehicles was driven at the time of the accident.
- Similarly rail road accidents, train collisions, or smashes, boiler explosions, mischief by using explosive materials( this has now become common) or setting fire to passenger carriers (buses and trains) by unsocial elements could be photographed with advantage.

## Photographs of the dead body:

- Dead bodies at the scene may become a problem. Moreover, the investigating officer has to send the dead body to the civil surgeon, or other qualified medical officer, for post mortem examination.
- Photographs of the dead body would help in fixing the identification, the injuries or violent marks e.g. ligature marks etc., and the condition of the body.
- The injuries, if washed and photographed with a color film, they could even indicate the nature of weapon.
- Even minor scratches on the body can be photographed, if light is focused at certain angles.
- The photograph of the dead body may reveal many things.
- It may be of help in finding out whether the face of the deceased indicate fear, surprise hatred, or contempt and so on.
- It will further indicate the exact position in which the body was lying at the time of murder.

**Photographs of living persons, animals etc.,** Photographs of missing persons would be useful in tracing them. Similarly photographs of missing or stolen animals like dogs, cows, bulls, horses and other animals would be useful in locating them.

### Identification of offenders by photographs:

- The identification of prisoners act permits taking of photographs of convicted and arrested persons.
- These photographs would be useful in apprehending them if need be at a later time.

It is not improper for the police when in doubt as to the person who committed a particular crime to show a number of photographs of different individuals to persons who may there after become witnesses at the trial.

- The use of photographs after an arrest and before an identification is improper.

### Photographs of jewellery and other valuable articles:

- The owners of valuable jewels may keep photographs of their articles.
- In museums photographs of valuable articles like paintings or rare articles of antique nature if taken will be of immense help in tracing them, if stolen.
- Similar is the case with idols in temples.

## Crime Scene Observation Proceeding

### Observation

- In the presence of two witnesses the investigator has to commence the investigation by recording pertinent facts and details observed by him at the crime scene.
- The discovery of every significant item of evidence, when and where it was found, should be accurately described.

### The notes should cover the following aspects of the crime scene:-

- The date and time of the FIR
- The nature of crime and location of the crime scene and a brief description of the area.
- Brief facts of the crime.
- The names of all officers/witnesses, investigators and personnel of importance at the crime scene.
- The names of persons who photographed, lifted fingerprints, drawn sketches, etc.
- Mention the weather and lighting condition at the time of observation of the scene.
- A description of the interior and exterior of the crime scene, number of rooms, doors, windows, etc.
- The location and collection of evidence.
- The date & time of completion of recording and examination of the crime scene.
- The officer assigned with investigation of a case should arrive at the scene of crime immediately and make arrangements to protect. Photograph, sketch and search the crime scene.
- Investigation is a long-drawn process involving not only processing the crime scene but also various other inter-related procedures such as interviews, interrogation and recording of statements of witnesses, suspect, victim, etc.
- The successful investigation of a case rests on the ability of the police officer to gather maximum information from various sources in a limited time in order to use it subsequently in accordance with law.
- The police officer cannot easily and accurately recall past events for crime scene reconstruction or for court testimony after a lapse of time. Sometimes many seemingly un-important details may prove to be of utmost utility in the investigation process.
- The investigating officer should enter all details, observations, data, and statements as and when they occur in his observation notes and case diaries.
- The necessity of observation notes will be felt at various levels of the investigation.
- Adequate notes are a prerequisite for future evaluation of evidence, preparation of charge sheet and deposition in the court.
- Photographs provide only a two-dimensional representation of the crime scene. Whereas sketches are useful for fixing the location of various items at the scene.
- The other intricate details such as the colour, design, pattern, type, model, brand, serial number, etc. of the various items, which may be required for the investigation, can only be recorded in the observation notes.

- The judiciary and defence counsel may also demand the detailed notes and records maintained.

## Guidelines For Recording Observation Proceeding

i. **Method of Recording:** The notes should start with the time of receipt of first information. The notes can be recorded as and when the observations are made and need not be in sequence.

ii. **Date, time and location:** The time and date of arrival at crime scene and the details of its location, environmental conditions (smoke, rain, dusk, data, etc), the names of persons present at the scene on arrival, should be recorded.

iii. **Description of the victim and clothing:** The name, age, height, weight, complexion, colour of hair and eyes and if possible the date of birth of the victim should be noted. Outer garments should be described in terms of type of garment and colour.

iv. **Wounds on the victim:** Information should include the exact location of a wound or injury, its type, size and in the case of a bruise, its colour.

v. **General Description:** The police officer should note any damage to items and any apparent disturbance of the normal arrangement of furniture or other objects and also the presence of objects that seem unusual in the context of the scene.

vi. **Recognition of each significant item of evidence:** The description of each significant piece of evidence found or identified with special techniques should be recorded with complete details such as the time when it was found, the exact location, who found it, how it was marked, sealed and packed.

vii. **Failure to locate certain items:** The purpose of this entry is to note items that should have been normally associated with the crime being investigated, but which are absent at the crime scene or on the victims or deceased. For example, such an entry could concern an item of clothing or a piece of clothing missing from the victim's body that could not be located at the scene of crime and which, if found later from the suspect or elsewhere, would be useful in linking evidence and suspect or vice versa

viii. **Other important Information:** The condition of doors, windows, locks, wrist watches, clocks, water taps, electric lights and other household gadgets as well should be recorded carefully.

ix. **Miscellaneous:** Any other details not included in photography and sketches such as condition of surroundings, minute details on various items of evidence such as serial number, model, make of firearm, etc., should be recorded. The investigating officer can reorganize all these notes to prepare the charge sheet or for making entries in case diaries.

## Crime Scene Drawing (Sketching)

- The basic reason for sketching a crime scene is to provide an understanding in depth of the circumstances of the crime beyond the level of comprehension attained solely by reading a written report or studying photographs
- A sketch is more than a written report and less than a photograph to depict a crime scene. But because of its unique virtues it can supplement both reports and photographs
- The advantage of a sketch is that unnecessary details can be eliminated, whereas it cannot be eliminated from a photograph and is eliminated only with difficulty from a report.
- Sketching or diagramming the scene in the regular course of police business records the facts available to the viewer.
- So that at any time in the future the assigned investigator and the tiers of fact both have graphic representation of the crime scene.
- The rough sketch must be made by the investigator as a part of his field notes; both the sketch and the notes are aligned with the search of the scene.
- A field sketch is marked for identification by inserting. A common error in sketching the scene is to attempt to make an architectural reproduction of the scene or to include too many details.

- The crime-scene sketch is unlike the diagram of a traffic accident. Items that do not aid in reproducing the accident should not be shown.
- Standard symbols are used to indicate characteristics of a sketch, such as roads, walks, fences, common items of furniture, and evidence frequently encountered at crime scenes.
- A sketch shows and locates important objects at the scene; unimportant ones are omitted for simplicity.
- No one except the sketcher should mark or correct a field sketch in anyway. This is the first permanent graphic record of the investigation.
- It is kept for years, beyond any possible need in court, and a Xerox copy is attached to the investigator's report of the case. When a graphic illustration is meant to clarify a written report, accurate measurements are needed.
- Steel tapes are the approved means of measuring distances in criminal investigation.
- The so-called measuring wheel is an accurate device, but the investigator must show that he knows how to use it and that he used it in a manner that produced an accurate measurement.
- He should test it against a known distance measured with a steel tape to verify its accuracy prior to use.
- The greatest disservice an investigator can render is to record an erroneous measurement on a drawing or in his field notes of a crime, for in that case no matter how many persons subsequently certify the correct measurement, there will always be a question about the initial recording and why it was erroneous.
- In general, measurements are made of the area searched. Measurements are made, first of all, with the eye.
- The investigator surveys the crime scene and decides what to measure and where to start. The distance lines of the sketch plan are drawn; then the actual measurements are made and recorded on the plan.
- Measurements should extend along and from fixed and identifiable points. Avoid any distance measurement with a floating base- that is a reference point that may be moved or cannot be located a point on the sketch only if the angle is broad and has two reference measurements from identifiable fixed points or objects
- If possible, nothing should be moved in the process of measuring. Remember the movement of object changes the scene.
- The sketcher can claim the object was returned to exactly the same spot, but this is an unnecessary taint of the testimony of the officer.
- Many graphic illustrations are drawn to scale, using the investigator's rough sketch and measurements. Recommended scales range from 1/8 inch equals 1 foot for indoor scenes to 1 inch equals 20 feet for larger outdoor areas.
- These scales usually permit the work to be presented on an 8 1/2 by 11 inch sheet of paper. Ideally, the investigator should select a scale that permits reproduction of the scene without completely filling the 8 1/2 by 11 inch paper and allows space for a key a legend and necessary identification.
- Erasures may be made on such drawings. In fact, the drawings usually are completed in pencil, then linked in with a permanent ink, and the pencil marks erased after the ink has dried completely.
- The drawings are indentified as is the crime-scene sketch, and similar symbols may be used and annotated as necessary.
- Colours may be used for special effects, and overlays of semitransparent paper may be used to diagram the travels of participants in the crime.
- Schematic diagrams are often used to show the travels (paths) of the victim, offenders(s), bullets, and other moving objects.
- The professional assistance of individual s with special training is often utilized to prepare an investigator's sketches and diagrams for use in court. These may be enlarged (blown-up), but will be to a scale noted on the drawing.

- They are usually endorsed or certified by the investigator as being a reproduction of his or her original crime-scene sketch.
- Conventionally, the crime-scene sketch has been used as a single- purpose tool merely to indicate the position of physical evidence at the crime scene.
- Its major purpose has been to place various items of physical evidence at the crime scene sketching should be the graphic presentation of the crime scene in a manner that will permit reconstruction of the crime from the details of the sketch.
- Thus an ability to draw must be placed high among the necessary skills of an investigator. A sketch is an excellent aid in visualizing a crime scene. For years, sketching has been particularly effective in vehicular traffic accidents; however, it is a standard investigative technique for pictorial recording in all types of investigations.